

Serious Incident Report no. 11386/2021

Report date and time (UTC)	2021-04-22 [REDACTED] Sensitive operational information x2
Last modification date and time (UTC)	2022-01-25 [REDACTED]
Reporting entity/function	FSA
SIR Status	Closed
Workflow Status	Processed
SIR Category	Valid to 2021-04-30: 4 - Situations of alleged violations of Fundamental Rights or international protection obligations
Subject	FSA Sighting in Central Med - capsized of a rubber boat, 4 bodies found
Joint operation	FSC Aerial Surveillance 2021
[REDACTED] incident number	[REDACTED] Reporting tools x2
Original source of information	FSA
FX SI Handler	HoO.FRO
Frontex resources involved	Yes
Use of force	No
Incident dates (UTC)	2021-04-21 [REDACTED] , 2021-04-22 [REDACTED] Sensitive operational information x2
Location of the incident	Tripoli, Tripoli, Libya
Latitude	32.895278
Longitude	13.181111
Location details	40 nautical miles North East of Tripoli(Libya)
Reference to the operational area	No
Type of resources / involvement	Frontex surveillance Aircraft [REDACTED]
Dead persons	4 Technical equipment
Injured persons	
Missing persons	

Details

[Sensitive operational information](#) [Technical equipment](#)

Sensitive operational information Information/Allegations	On 21st April at [REDACTED] sighted a grey rubber boat adrift with about 80 persons on board. After the sighting, the aircraft stayed in the area in order to observe the boat status. FSA informed the following rescue coordination centres: MRCC Rome, RCC Malta, MRCC Tunis and RCC Libya. Technical equipment Given the critical situation caused by deteriorating weather conditions, [REDACTED] broadcasted several distress communications over the emergency marine radio channel to alert all ships in the vicinity including Tripoli Air Traffic Control (ATC). Libyan Coast Guard requested Italian MRCC to divert the ships sailing in Libyan SRR towards the boat in distress. Merchant vessels "ALK", "LISBETH" and "MY ROSE" proceeded to render assistance. Technical equipment On 22nd April [REDACTED] spotted an empty, grey, partially deflated rubber boat approximately 51 nautical miles North of Tripoli. During the visual searches in the vicinity of the afore-mentioned boat, [REDACTED] sighted a floating body. In the area of operation, [REDACTED] also spotted NGO vessel "OCEAN VIKING" and merchant vessel "MY ROSE". The latter communicated that other three bodies were found in the area of searches. According to information which was later received from the Maritime Rescue Coordination Centre in Rome, Merchant vessel "MY ROSE" spotted eight bodies in the area. Several media outlets reported that 120 migrants might have died in a shipwreck off Libya.
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Sensitive operational information x5 Technical equipment Technical equipment Measures/Actions taken Sensitive operational information x2 Human resources Technical equipment x3 Sensitive operational information x2 Technical equipment x2 Reporting tools Sensitive operational information x4 Technical equipment x2 Assessment	Taken into account the seriousness of the case and the loss of lives as well as alleged violations of fundamental rights/international protection obligations, HoO.FRO and, with FRO agreement, ██████████ shared the SI coordination. Human resources On 21st APR 2021 at ██████████ the first warning communication was sent to all competent authorities : Libyan, Maltese and Italian. Modus operandi of law enforcement x2 On 21st APR 2021 at ██████████ FSA sent a distress call ██████████ and the Libyan Patrol vessel "OBARI" was called directly from ██████████ On 21st APR 2021 at ██████████ FSA contacted the Air Traffic Control (ATC) Tripoli in order to pass all the information related to the event to RCC Tripoli. At ██████████ FSA sent another communication to MRCC Italy, RCC Malta, RCC Libya and EUNAVFORMED underlining that the situation was critical. At ██████████ ██████████ broadcasted a MAYDAY RELAY communication over the marine emergency channel for all the ships in the area to render assistance. It was also attempted to contact Libyan Patrol vessel "OBARI" but without success. At ██████████ ██████████ also informed Tripoli Air Traffic Control about the rubber boat in distress for any further handling of the case with the competent Authority. Human resources At ██████████ the ██████████ tried to contact Tripoli Rescue Coordination Centre twice over the phone without success. Reporting tools At ██████████ ██████████ updated the Libyan, Italian and the Maltese Rescue Coordination Centres via email about the conditions of the rubber boat in distress. The distress call to all shipping on the marine emergency radio channel and to Tripoli Air Traffic Control was reiterated at ██████████ Sensitive operational information x2 Upon request of the Libyan Coast Guard, at ██████████ Italian MRCC notified Tripoli Rescue Coordination Centre that 3 ships had been diverted towards the position of the rubber boat in distress (Motor Vessels "ALK", "VS LISBETH" and "MY ROSE"). Technical equipment Due to fuel limitations, ██████████ FSA ██████████ started its return to Lampedusa and landed at ██████████ Sensitive operational information x2 Given that no further requests for aerial surveillance were received, taking into account the deteriorating weather conditions which preventing landing and take-off for FSAs and considering and that 3 merchant vessels had been diverted to render assistance towards the last known position of the rubber boat, no other sorties were performed during the night. On 22.04.2021 at ██████████ despite the fact that bad weather conditions were still persistent, the ██████████ requested the company providing aerial surveillance to assess the possibility to have an FSA taking off for another mission over the last known position of the rubber boat spotted the day before. At ██████████ FSA ██████████ managed to take off and headed towards the most probable position of the target considering the marine currents and the strong wind in the area. During the transit, ██████████ established communication with the Italian Navy asset as well as "OCEAN VIKING" vessel which informed FSA ██████████ about the medical facilities available on board the NGO ship in case of need. ██████████ reached the vicinity of merchant vessel "MY ROSE" and soon after detected an empty semi-deflated grey rubber boat. ██████████ broadcasted over the emergency marine radio channel the updated position of the grey rubber boat but no acknowledgement was received. In the absence of instructions received from RCC Libya, ██████████ was tasked by ██████████ to search for any persons in the water. Technical equipment ██████████ Libyan, Italian and Maltese Rescue Coordination Centres were informed by e-mail. ██████████ the ██████████ tried again to contact over the phone for three times Libyan Rescue Coordination Centre with no success. ██████████, ██████████ detected a floating body and the information was sent via email ██████████ to the Libyan, Italian and Maltese Rescue Coordination Centres. ██████████ continued its search for possible survivors until fuel limitations forced the aircraft to return to base and land in Lampedusa ██████████ Sensitive operational information Based on the location, time and appearance of the sighted boat there is a
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Human resources	realistic possibility that the boat sighted on the 21st APR carrying migrants and the empty, semi-deflated boat with floating bodies in vicinity sighted on 22nd APR might be the same boat. It can be affirmed that since Libyan Coast Guard requested Italian MRCC to divert some ships to the position of the boat in distress, this implicitly means that Tripoli RCC was coordinating the search and Rescue Operations. It is also reasonable that given the marine conditions on the 21.04.2021, the patrol boats at disposal of Libyan Coast Guard were not safe to perform search and rescue operations with sea state 4/5 as declared by the Libyan Authority to Watch the Med.
Personal Data	
Final Report	
Key points	
Description of the event - Timeline	
Information collected - Contributors/Entities consulted - Follow-up	
Assessment	Human resources Technical equipment Sensitive operational information
Sensitive operational information Final conclusion - Proposals - Lessons learned Reporting tools	In all likelihood the shipwreck occurred in a timeframe between on 21.05.2021 (time when started to return to base) and the arrival on the scene of the merchant vessels diverted by the Italian MRCC, hence approximately 3 hours later. No further useful steps could have been taken from Frontex operational side. HoO.FRO: The gathered data and information (presented in this final Report) and discussed among the Serious Incident co-coordinators lead to the conclusion that Frontex took all steps possible within its remit in relation to the incident concerned. Technical equipment Regarding the role of Frontex, on 21 April and 22 April 2021, three flights performed by Frontex surveillance aircrafts were carried out in the Libyan area. During the second flight a rubber boat in distress was spotted around and all ships in the area were immediately requested via VHF radio to re-direct to the point. The aircraft then in the air remained in the area until the end of its autonomy. Next day, 22 April 2021, despite the bad weather conditions, the ordered Frontex aerial surveillance to take off over the last known position of the rubber boat spotted the day before. headed towards the most probable position of the rubber boat and detected it to be empty and semi-deflated. In the absence of instructions received from RCC Libya, was tasked by to search for any persons in the water and detected a floating body before its return to the base due to fuel limitations. Technical equipment In order to access any supplementary information or assessment from the respective national authorities, on 27 May 2021 FRO requested the Italian authorities to provide any further information on the reported matter. On 7 June 2021 the Italian authorities replied by stating, inter alia, that MRCC Rome, like the other rescue centers involved, was addressed in the e-mails sent by the Watch The Med - Alarm Phone and operated in strict compliance with SAR procedures and international regulations, cooperating with the coordinating SAR Authority and providing the necessary support in order to proceed with the search and rescue of the boat in distress. It should be noted that everything took place in bad weather and sea conditions. The Italian authorities confirmed that under the coordination of the Libyan Rescue Center and with the cooperation of the Italian Rescue Center, three merchant ships arrived in the area in order to lend assistance. As provided in the reply of the Italian authorities, the Libyan authorities took over the coordination of the operation and sent a patrol boat which rescued 104 people from one of the two boats. Furthermore, the Libyan Rescue Center requested cooperation from MRCC Rome to identify and direct other ships in the area as reported. As a conclusion, in light of the above and taking into consideration all collected

information received from internal and external entities, including the assessment of the Italian authorities, FRO suggests considering the present incident to be closed.
On 01.07.2021 SI Co-coordinators HoO.FRO and [REDACTED] proposed to close the SIR.

[Human resources](#)

[Out of scope of the application](#)